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# ODPC Registration for Private Security Firms

*A sector guide to dual ODPC/PSRA registration, the contested Section 48 directive, and CCTV proportionality for guarding and investigation services in Kenya.*



PRIVATE SECURITY · ODPC REGISTRATION · CCTV PROPORTIONALITY · PSRA LICENSING

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*A Sector Guide for Guarding, CCTV, Access Control and Investigation Services in Kenya*

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**KENYA PRIVACY LAW REVIEW · REGISTRATION GUIDE SERIES**

# **ODPC Registration for Private Security Firms**

*A sector guide for guarding, CCTV, access control and investigation services in Kenya.*

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## AT A GLANCE

- “Crime prevention and prosecution of offenders, including operating security CCTV systems” is a mandatory ODPC registration category regardless of turnover or staff numbers, **in addition to — not instead of —** mandatory PSRA licensing under the Private Security Regulation Act, 2016.
- A January 2024 directive requiring security personnel to record and temporarily retain visitors' identification documents rests on a provision whose own enabling regulations do not appear to have been made — data protection specialists have **publicly questioned** its legal footing.
- A November 2025 ODPC determination confirms that CCTV installed for security purposes remains **fully subject** to the Act's proportionality requirements — the complaint arose between neighbours, not a commercial client, and still produced a compensation order.
- The Data Protection (General) Regulations require a Data Protection Impact Assessment before deploying surveillance technology — a step many CCTV and access-control installations **skip entirely**.
- When a security firm operates CCTV or access control on a client's premises under the client's instructions, the client is ordinarily the **controller** and the security firm the **processor** — the reverse of the pattern this series has described for most other sectors, and one security firms frequently register the wrong way round.

## 01 Introduction

Kenya's private security industry ranges from single-site manned guarding outfits to national firms running CCTV monitoring, access control, event security and investigation services across hundreds of client premises. Every one of those services generates personal data — visitor and vehicle logs, CCTV footage, biometric access records, and extensive vetting data about the firm's own guards and investigators. The Data Protection Act, 2019 (“the Act”) requires a private security firm to register with the ODPC as a data controller, and, in the common case where it operates a client's surveillance or access system on the client's instructions, to register separately as a processor. This Guide sets out that obligation alongside the sector's parallel licensing regime and a directive whose legal basis is not as settled as it is often assumed to be.

## 02 The Legal and Regulatory Framework

The registration obligation arises from section 18 of the Act, given operational effect by the Data Protection (Registration of Data Controllers and Data Processors) Regulations, 2021 (Legal Notice No. 207 of 2021) (“the Registration Regulations”), which took effect on 14 July 2022. Separately, the Private Security Regulation Act, 2016 (No. 13 of 2016) establishes the PSRA as the industry's licensing and conduct regulator, covering manned guarding, electronic security, CCTV surveillance, access control, event security and VIP protection, and requiring registration of both firms and individual security personnel, including guards and investigators. A firm operating in this sector must therefore satisfy two independent registration regimes — ODPC and PSRA — neither of which substitutes for the other. The ODPC's own Draft Guidance Note for Private Security, issued in 2025, addresses how the Act applies specifically to this industry's data practices.

## 03 Why Registration Is Mandatory for This Sector

The Registration Regulations exempt data controllers and processors with an annual turnover below KES 5,000,000 and fewer than ten employees from mandatory registration — but only where the entity does not fall within a list of sectors the Regulations treat as inherently higher-risk regardless of size. Private security, including the operation of CCTV systems, is one of those sectors.

**PRACTICAL INSIGHT**

A two-person outfit monitoring CCTV for a handful of small shops must register with the ODPC, exactly as a national guarding firm must — and, separately, must also hold a PSRA licence. Neither regulator's requirement satisfies the other; both apply in full regardless of size.

## **04 The Section 48 Question: A Directive on Uncertain Footing**

Section 48 of the Private Security Regulation Act empowers private security personnel to request identification from persons accessing premises under their care, to register entry and exit times, and to temporarily retain identification documents. On 15 January 2024, the PSRA issued a directive giving immediate effect to this power across accommodation and hospitality premises, including Airbnb-style short-lets, following a series of security incidents. Data protection specialists have since publicly questioned the directive's own legal footing: section 48(4) of the Private Security Regulation Act requires the Cabinet Secretary to make regulations to give effect to section 48, and, on the analysis offered in that public commentary, no such regulations appear to have been made before the directive was issued. This is not a settled question, and this Guide does not resolve it — but a security firm currently implementing the directive should understand that its legal basis has been publicly contested, and should not present compliance with the directive alone as a complete answer to its obligations under the Act, which independently requires that any identification data collected be handled proportionately, securely, and for no longer than necessary.

## **05 Controller, Processor — or Both?**

A private security firm is a data controller for its own business records — client contracts, invoicing, and, significantly, the vetting and background-check data it holds about its own guards and investigators under PSRA's registration requirements. Where the firm operates CCTV, access control or a visitor log on a client's premises under that client's instructions — a hospital, a hotel, a gated estate, a shopping centre — the client is ordinarily the controller for that footage and data, since the client determines why the system exists and how the footage may be used, and the security firm is the processor. This is the reverse of the pattern this series has described for most other sectors, where the business engaging outside help is usually the one delegating a controller role rather than assuming one, and it

is frequently registered the wrong way round — a security firm should confirm, contract by contract, which role it actually occupies rather than defaulting to controller in every case.

## 06 Registration Tiers and Fees

Private-sector data controllers and processors are classified into three tiers based on annual turnover and employee numbers.

| Tier                                        | Size Criteria                                         | Registration Fee (once-off) |
|---------------------------------------------|-------------------------------------------------------|-----------------------------|
| Micro & Small                               | 1–50 employees; turnover up to KES 5,000,000          | KES 4,000                   |
| Medium                                      | 51–99 employees; turnover KES 5,000,001–50,000,000    | KES 16,000                  |
| Large                                       | More than 99 employees; turnover above KES 50,000,000 | KES 40,000                  |
| Public / Charitable or Faith-Based Entities | Regardless of turnover or staff numbers               | KES 4,000                   |

A certificate of registration is valid for 24 months from the date of issue and must be renewed at least 30 days before expiry; renewal fees are lower than initial registration fees (currently KES 2,000 for Micro & Small, KES 9,000 for Medium, and KES 25,000 for Large). Registration with the ODPC is separate from, and does not substitute for, PSRA licensing and its own renewal cycle.

## 07 Information the ODPC Will Expect to See

Beyond basic establishment details — a certificate of incorporation and a KRA PIN — a complete application requires a clear and internally consistent description of the firm's data processing activities:

- **Categories of data subjects processed** — clients, site visitors and CCTV subjects, the firm's own guards and investigators, and, where investigation services are offered, investigation subjects.

- **Categories of personal data processed** — CCTV footage, biometric access data, identification documents recorded or temporarily retained at client premises, and extensive vetting and background-check data held on personnel.
- **The specific purposes** for which data is processed — access control, incident investigation, client site security, and statutory PSRA compliance should be distinguished rather than bundled into a single generic purpose.
- **Recipients** to whom data is disclosed — clients (as controllers of their own site's footage in most arrangements), the PSRA, and law enforcement agencies where relevant to a specific incident.
- **Any transfer of data outside Kenya** — relevant where CCTV footage or access logs are stored on an offshore-hosted monitoring platform.
- **The safeguards in place** — access controls on footage and vetting records, and a documented, proportionate basis for each camera or access-control point in operation.

## 08 Where Private Security Firms Get It Wrong

The following gaps are the ones we most commonly see, and, on the evidence of the determination discussed in section 11, the ones most likely to produce a complaint.

### COMMON MISTAKE — NO DATA PROTECTION IMPACT ASSESSMENT BEFORE DEPLOYMENT

The Data Protection (General) Regulations require a Data Protection Impact Assessment before deploying surveillance technology, yet many CCTV and access-control installations proceed directly from a site survey to installation with no documented assessment of proportionality or necessity.

### COMMON MISTAKE — TREATING “SECURITY PURPOSE” AS A BLANKET JUSTIFICATION

Assuming that any camera placement is defensible once a general security rationale is cited. As the case discussed in section 11 confirms, a security purpose does not exempt a system from the Act's proportionality requirement — a camera capturing more than its stated purpose requires is a violation regardless of the operator's intent.

**COMMON MISTAKE — REGISTERING THE WRONG ROLE ON A CLIENT CONTRACT**

Registering as controller by default for CCTV or access-control data that is, on the actual instructions governing the contract, data the firm processes on a client's behalf — and consequently failing to register as processor where that is the correct role.

**COMMON MISTAKE — TREATING THE SECTION 48 DIRECTIVE AS A COMPLETE COMPLIANCE ANSWER**

Citing compliance with the identification-retention directive as though it fully discharges the firm's obligations under the Act, without separately addressing how long identification documents are retained, who may access them, and when they are disposed of.

**COMMON MISTAKE — NO DISTINCT SAFEGUARDS FOR PERSONNEL VETTING DATA**

Holding extensive background-check and vetting data on guards and investigators, collected to satisfy PSRA's registration requirements, without safeguards distinct from those applied to ordinary employee records.

## 09 Step by Step: Registration and Responding to a Correction Notice

- Prepare the data inventory and supporting documents set out in section 7 above before opening the online application.
- Submit the application through the ODPC's online portal and pay the applicable tier fee, separately from any PSRA licensing process.
- Where the Data Commissioner is satisfied, a certificate of registration is issued within 14 days of a complete submission.
- Where the Data Commissioner is not satisfied, a written refusal notice is issued within 21 days, setting out the specific reasons for rejection.
- A rejected applicant may cure the identified deficiencies and make a fresh application — this attracts a new registration fee.
- Once issued, the certificate is valid for 24 months and must be renewed at least 30 days before expiry, independently of the PSRA licence renewal cycle.
- Before installing any new camera or access-control point, conduct and document a proportionality assessment — this is both good practice and the foundation of the Data

Protection Impact Assessment the Regulations require.

## 10 Beyond Registration: Related Compliance Obligations

Registration is a threshold obligation, not a complete compliance programme. Private security firms should, in parallel, address the following:

- **A Data Protection Impact Assessment** before deploying or materially altering any CCTV or access-control system, as required by the General Regulations.
- **Clear signage and notice** at any site under surveillance, together with a designated contact person for queries, consistent with the ODPC's guidance for this sector.
- **Written data processing agreements** with clients that set out, in each case, which party is controller and which is processor for the footage and access data generated.
- **A documented retention and disposal policy** for CCTV footage, identification documents collected under the Section 48 directive, and personnel vetting records.
- **A breach-response procedure** calibrated to the Act's notification timelines, with particular attention to incidents involving footage of identifiable individuals.

## 11 Case in Focus

### LILIAN NYAWIRA NDERITU & ANOTHER V JOSEPHAT KARUNGO & ANOTHER — ODPC COMPLAINT NO. 0596 OF 2025, DETERMINATION OF NOVEMBER 2025

**Facts.** Since mid-2021, a Nairobi couple's CCTV system had recorded activity inside their neighbours' home, including the kitchen and other personal spaces, for nearly four years. The complainants reported ongoing anxiety and psychological distress, and said repeated attempts to resolve the matter through the area chief and direct negotiation had not stopped the intrusion.

**Determination.** The Data Commissioner found that the placement of the cameras breached the complainants' constitutional right to privacy, holding that the complainants' home was a private space and that the continuous capture of images of that space from a neighbouring property constituted unauthorised processing of personal data. The determination confirmed that installing CCTV for security purposes does not exempt a system from the Act — a security rationale must still be matched by proportionate camera placement, and must satisfy the Act's principles of lawfulness, fairness, transparency, data minimisation and purpose limitation. The respondents were ordered to pay KES 200,000 in general damages under section 65 of the Act, which entitles a person who suffers damage, including distress, from a contravention of the Act to compensation.

**Relevance to this sector.** This determination did not involve a licensed security company or a commercial contract — it arose from an ordinary residential CCTV installation. That makes it, if anything, more instructive for a professional security firm: if a homeowner's camera is held to the Act's full proportionality standard, a firm operating CCTV commercially across multiple client sites, without the documented Data Protection Impact Assessment the Regulations require, is exposed to at least the same standard of scrutiny — with a commercial client's, rather than a single neighbour's, complaint as the likely trigger.

## 12 Practical Compliance Checklist

### BEFORE YOU APPLY

- ☒ Confirmed the firm's correct tier by cross-checking staff numbers and turnover against filed accounts and payroll records.
- ☒ Confirmed PSRA licensing status is current and tracked separately from the ODPC registration cycle.
- ☒ Determined, contract by contract, whether the firm is controller or processor for each client's CCTV or access-control data.

- ☒ Prepared a complete data inventory: clients, site visitors, personnel, and, where applicable, investigation subjects.
- ☒ Documented specific safeguards for CCTV footage, biometric access data, and personnel vetting records.
- ☒ Identified all recipients, including clients, PSRA, and any law enforcement disclosure pathway.

#### AFTER YOU APPLY

- ☒ Diarised the 14-day review window and the 21-day refusal-notice window.
- ☒ If a correction or refusal notice is received, addressed every point raised before resubmitting.
- ☒ Diarised the 24-month certificate expiry and the 30-day renewal deadline, tracked separately from PSRA renewal.

#### ONGOING

- ☒ Conducted and documented a Data Protection Impact Assessment before installing or materially changing any CCTV or access-control system.
- ☒ Reviewed camera placement and access-control scope against a documented proportionality assessment, not a general security rationale alone.
- ☒ Put in place signage and a designated contact person at every site under surveillance.
- ☒ Reviewed identification-document retention practices against a defined, temporary standard rather than indefinite retention.
- ☒ Executed data processing agreements with clients that clearly allocate the controller and processor roles.

## 13 Conclusion

A Kenyan private security firm carries a heavier registration burden than most sectors in this series — mandatory ODPC registration, mandatory PSRA licensing, and, for many firms, an unresolved question about the legal footing of a directive they are nonetheless expected to implement in practice. None of that complexity is a reason to under-register or to treat one regime as covering the other. The determination discussed in this Guide is a useful corrective for any firm inclined to treat a security rationale as self-justifying: proportionality is assessed on the placement and scope of the system actually deployed, not on the sincerity of the security purpose behind it.

### KEY TAKEAWAYS

- “Crime prevention and prosecution of offenders, including operating security CCTV systems” is a mandatory ODPC registration category regardless of turnover or staff numbers, **in addition to — not instead of —** mandatory PSRA licensing under the Private Security Regulation Act, 2016.
- A January 2024 directive requiring security personnel to record and temporarily retain visitors' identification documents rests on a provision whose own enabling regulations do not appear to have been made — data protection specialists have **publicly questioned** its legal footing.
- A November 2025 ODPC determination confirms that CCTV installed for security purposes remains **fully subject** to the Act's proportionality requirements — the complaint arose between neighbours, not a commercial client, and still produced a compensation order.
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### AUTHOR'S PERSPECTIVE

This sector occupies an unusual position in our practice: security firms are simultaneously a mandatory registrant in their own right and the entity actually operating the CCTV and access-control systems we discuss as compliance risks in almost every other Guide in this series. Getting a security firm's own registration and controller/processor analysis right has a multiplying effect — it is very often the same fix a hospital, hotel or estate client needs, arrived at from the other side of the contract.

**How We Can Help.** We advise private security firms on dual ODPC/PSRA registration, controller/processor allocation with clients, and the Data Protection Impact Assessments their CCTV and access-control deployments require. If any part of this Guide describes your firm, we would be glad to talk it through with you.

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